

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 25, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Shanor, and pursuant to support received by Mr. Allen and Dr. Rinne, Agenda Item #25 was removed from the Consent Agenda. Upon request by Mr. Brown, and pursuant to support received by Mr. Allen and Mr. Luna, Agenda Items #21 and #22 were removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Allen and Mr. Brown, Agenda Item #26 was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

CA] Minutes from Regular Meeting of the Governing Body on November 12, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC Services) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry, Vicki Nemecek, Public Works Department, clarified a voucher payable to Doug's Towing was for towing services involving residents' vehicles in a scheduled construction work area. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for Wadsworth Old Chicago, Inc. d/b/a Old Chicago Restaurant, 1734 Meadowland Drive, Cheyenne, Wyoming (License currently held by OC Cheyenne, LLC d/b/a Old Chicago Restaurant, 1734 Meadowland Drive, Cheyenne, Wyoming). There being no comments and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

Mayor Kaysen opened a public hearing to receive comments and input for a transfer of ownership for a retail liquor license application filed with the City Clerk's Office for High Plains Entertainment, Inc. d/b/a Redwood Lounge and Package Liquor, 2105 E. Lincolnway, Cheyenne, Wyoming (License currently held by Wigwam, Inc. d/b/a Redwood Lounge and Package Liquor, 2105 East Lincolnway, Cheyenne, Wyoming). Upon inquiry, Bryan Grzegorzczak, current licensee, advised Kevin Lesperance, High Plains Entertainment, Inc., is purchasing the business. Mr. Lesperance advised he has worked in the liquor retail marketing business and is in the process

of moving to Cheyenne from Texas. There being no further comments and purpose of the public hearing having been met, Mayor Kaysen closed the hearing and referred the application to Finance Committee.

ORDINANCE - Amending the Cheyenne Unified Development Code (UDC), as approved by Ordinance No. 3943 on January 23, 2012, to adopt amendments identified as Election and Ideological Sign Amendments from 2013 Annual Review. Reporting for Public Services Committee, Mr. Allen moved to approve on third and final reading, seconded by Ms. Williams. Mr. Allen moved to postpone to December 9, 2013, seconded by Ms. Broyles. It was advised a postponement will allow time to review additional information relative to proposed amendments. Motion to postpone carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from NR-3 Neighborhood Residential – High Density District to MR-2 Medium Density Residential – Developing for Lots 1-10, Block 1, and Lots 1-10, Block 2, Saddle Ridge, Sixth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Countryside Avenue and Medicine Man Trail). Mr. Allen moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential (County) to NR-2 Neighborhood Residential – Medium Density for a replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Shiraz Enclave (located east of and adjacent to Snyder Avenue, north of W. Allison Road). Mr. Allen moved to approve on second reading, seconded by Mr. Cook. Upon inquiry, Brad Emmons, AVI Engineering and agent for the applicant, advised that currently there are no further meetings with the neighborhood scheduled, and stated a new drainage study has been submitted as well as an updated traffic study. He stated at the current time the developer is proposing to build townhouses, not single family homes. Upon further inquiry, Mr. Emmons provided information on drainage plans; storm sewer pipe, and possible formation of a home owners association (HOA) to address maintenance responsibilities. Shawn Ajdari, developer, advised covenants will be drafted that will include homeowner's responsibilities. Motion carried. Voting "yes" -- all members of the governing body with the exception of Ms. Williams voting "no".

ORDINANCE - Creating Chapter 5.78, Towing and Wrecker Recovery Operations, Amending Chapter 5.04, Section 5.04.030, Types of Businesses, Activities and Events, and Chapter 5.08, Section 5.08.270, Towing (Vehicular) of Title 5, Business Licenses and Regulations, and Repealing in its entirety Section 10.12.190, Towing Firm Standards, of Chapter 10.12, Administrative and Enforcement, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Chief Brian Kozak, Police Department, provided a brief background on the purpose of the proposed ordinance and explained the Police Department rotation call list. He

reviewed calls for service; complaints received from citizens regarding towing charges; lack of standardization of fees; requests from towing companies who want a “level playing field”; desire to establish reasonable standards and rates, and meetings the Police Department has held with the towing companies and a survey completed by the companies that assisted with drafting the ordinance. He reviewed various elements of the ordinance, including towing standards, response times, state licenses and City business license requirements, operator training, storage yard requirements, and time frame for vehicle “holds” relative to tows involving DUI incidents, and advised the ordinance is based on best practices throughout the country and the towing industry. Mike Basom, attorney representing Wyoming Professional Tow Association, spoke in opposition to the ordinance and expressed concerns regarding legal interpretation regarding exemption from federal regulation; interpretation of state statute relative to a state salvage yard license requirement, and towing operator training. Upon inquiry, Dan White, City Attorney, advised there was no intention in the ordinance to grandfather existing towing firms relative to meeting the state salvage license requirements, and confirmed that, under the proposed ordinance, towing companies must have a state salvage yard license to acquire the City business license. In response to query by Mr. Basom regarding frequency and cost of training, Chief Kozak provided information on the frequency of Traffic Incident Management System (TIMS) training and who would be trained, stating the Police Department will provide training at no cost to participants and that owners/participants attending can then train others. Jodi Shea, attorney with Pence and MacMillan, representing I-80 Towing and its affiliate towing companies, requested the ordinance be tabled for further discussion. She commented on day to day effects on towing companies the ordinance will have, including financial concerns; safe, effective and efficient services; fees for services, and common goals for improvements. Ms. Shea proposed alternative solutions involving tabling of the ordinance to allow towers to address issues and enable additional communication efforts, and developing a committee to evaluate complaints, identify issues and propose solutions to concerns that have been raised. Ms. Shea further discussed issues she felt need to be re-addressed, including fee schedules; requirement of being open four hours on weekends; forms of payment for services; vehicle “hold” time; salvage license requirement, and personal property contents within towed vehicles. Randy LeBeaumont, Randy’s Towing; Bob Cairns, Rocky Mountain Towing; Lawrence Anaya; M. Lee Hasenauer, Laramie County Commissioner; Todd Brown, T & T Auto Center, and Thomas Mullan, Fort Towing and I-80 Towing, expressed concerns with the proposed ordinance and resolution setting a fee schedule for those on the Police Department’s rotation call list. Topics discussed included: Opposition to the ordinance; opposition to affiliated rate setting resolution; financial effect on company operations; differing fees for certain scenarios involving towing services; uniformity and support for small businesses; storage lot zoning and compliance; current police rotation list requirements and regulating companies through rotation list enforcement; allowing towing companies to work together to address issues and concerns; support for postponement and formation of a committee to study and offer solutions to issues of concern, and upcoming meeting (invitation extended to governing body, law enforcement and others interested) of local towing companies to revamp the towers’ group and further discuss the proposed ordinance and call list rate resolution. Speaking in favor of the ordinance were Jaymi Lambert and Candy Kelch, citing personal experiences with high fees for towing services, and Russ Fleetwood, M & F Towing, and Kathy Julius, Doug’s Towing, who noted the ordinance is the result of bad towing practices by a few companies and commented in support of providing some type of guidelines, standardization, and review of towing fees assessed

by some companies to prevent overcharging for services. Reporting for Finance Committee, Mr. Brown moved to approve on second reading, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. Upon inquiry, Lt. Mark Munari, Police Department, advised changes contained in the substitute were at the request of towing company representatives, and reviewed the changes in the proposed substitute that involve insertion of "Whereas" clauses explaining the purpose of the ordinance, and mandated training requirement. Motion to amend carried. Voting "yes" -- all members of the governing body with the exception of Mr. Cook and Mr. Luna voting "no". Ensuing discussion on the main motion, as amended, included the following topics: Support for addressing towing services concerns to protect the community; elements of the ordinance involving timely response, types of payment allowed, and salvage yard requirements; regulation of certain towing services; standardizing towing fees through a reasonable rate structure for those on the rotation call list; current towing companies being allowed to remain on the rotation list based on complaints that have been received; issue of towing service fees being discussed at the state level; providing the towing association/group the opportunity to offer suggestions on issues of concern that have been raised; storage of vehicles relative to state statute, and working toward solutions through collaboration efforts. In response to query during discussion, Chief Kozak advised currently there is no authority to enforce standards as it is set through a resolution, not an ordinance; provided information on how the proposed fee schedule rates (affiliated resolution) were derived and how future rate changes may be made (through the governing body), and explained the current business license requirement relative to rates that the applicant has to submit. Main motion to approve on second reading, as amended, carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Section 13, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming to be known as the CST Annexation (located northwest of the intersection of West College Drive and Southwest Drive). Mr. Allen moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Section 26, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming to be known as the Koritnik Annexation (located at 3904 Whitney Road approximately 200 feet west of the northwest corner of the intersection of Whitney Road and Countryside Avenue). Mr. Allen moved to approve on second reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body.

ORDINANCE - Authorizing the issuance by the City of Cheyenne, Wyoming, of a 2013 Refunding Revenue Water Note, in a maximum principal amount of \$8,740,000 and an interest rate of 2.41% and a maturity date of not to exceed December 1, 2025, for the purpose of advance refunding a portion of the refunding Revenue Water Bonds, Series 2007; prescribing the form of said 2013 note; providing for the payment of the 2013 note and the interest thereon; authorizing the execution and delivery by the City of the 2013 note, and the sale of such 2013 note to BOKF, NA d/b/a Colorado State Bank and Trust, a paying agent and registrar agreement, an escrow agreement, closing documents and any other documents necessary in connection therewith; ratifying certain action heretofore taken and providing other details in connection therewith -- referred to Finance Committee (sponsor - Mr. Brown).

ORDINANCE - Amending Note 2 of the City of Cheyenne's Sanitation Fee Schedule established by Ordinance No. 3982 -- referred to Finance Committee (sponsors -- Mr. Brown and Mr. Shanor).

[CA] RESOLUTION - Approving Outside User Water/Sewer Services, by User's Agreement, with Swan Ranch, LLC, Lot 1, Block 1, Swan Ranch Rail Park, 2nd Filing, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5540)

[CA] RESOLUTION - Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$43,734.31 pursuant to Wyo. Stat. §16-4-502. Motion (per Consent Agenda) carried. (#5541)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5542)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Benz Subdivision, a replat of Tract 13 and the South 186.91 feet of Tract 14, Prosser Tracts, Laramie County, Wyoming (located at the southeast corner of Avenue C-1 and Reiner Court). Motion (per Consent Agenda) carried. (#5543)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, 3rd Filing, a replat of Lot 1, Block 2, Deerhaven Subdivision, 2nd Filing, Laramie County, Wyoming (located at the southeast corner of the intersection of Montalto Drive and E. Fox Farm Road). Motion (per Consent Agenda) carried. (#5544)

RESOLUTION - Promulgating maximum approved towing rates for tows within the City of Cheyenne when towing service is requested by the Cheyenne Police Department. Lt. Mark Munari, Police Department, explained research conducted regarding rates for different towing services around the country, and stated the maximum proposed rates for normal tows is a reasonable amount, noting that only those towing companies who wish to be on the Police Department rotation call list will have to comply with the set rates. He provided information on elements involved in different types of tows, and discussed meetings that had been held with towing representatives to receive input on the proposed new ordinance and affiliated rate regulation. Jodi Shea, attorney with Pence and MacMillan, representing I-80 Towing and its affiliate towing companies; Thomas Mullan, I-80 Towing; Shane Swett, A-1 Recovery, Laramie, and Bob Cairns, Rocky Mountain Towing, expressed concerns with proposed imposition of maximum fees that could be assessed by towing companies for services requested through the Police Department call list. Discussion topics included: Different towing scenarios; regulation not being necessary; favorable reputation of the majority of towing firms providing local services; flexibility provided in proposed rates for adjustments due to towing circumstances; review of rates for different types of tows and equipment involved; current City regulations; insurance and vehicle owners' option to file claims with insurance carriers to cover towing costs; consequences and expenses to towing companies when vehicle owners fail to pay, and current requirements to be eligible for placement on the Police Department rotation call list. During comments, Lt. Munari provided information on fee schedules submitted by towing firms per current City resolution in place and the difference enforcement-wise between an ordinance and a resolution; reviewed other communities' towing rates, and stated that the new proposed affiliated towing ordinance will not

force any company to be on the department call list. Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to postpone to December 9, 2013, seconded by Ms. Broyles. It was advised postponement will allow for action on the item to coincide with the next agenda item (Resolution repealing towing services standards) and the proposed towing ordinance acted upon earlier in the meeting. Pursuant to inquiry by Mr. Mullan regarding the postponement process Mayor Kaysen advised if the motion to postpone passed, the resolution, along with the next agenda item if it also were approved to be postponed, would be reviewed at the next Finance Committee meeting, which would be on December 2nd beginning at 11:00 a.m. in meeting Room 122, and verified the meeting is open to the public. Motion to postpone carried. Voting "yes" -- all members of the governing body.

RESOLUTION - Repealing Resolution No. 2463 and Resolution No. 2616, pertaining to towing services standards and standards for operations, for those towing firms approved to be on the Cheyenne Police Department rotation call list, in their entirety. Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to postpone to December 9, 2013, seconded by Mr. Valdez. It was advised postponement will allow for action on the item to coincide with the previous agenda item and the proposed towing ordinance. Motion to postpone carried. Voting "yes" -- all members of the governing body.

Following a ten minute recess, Mayor Kaysen reconvened the meeting at 8:13 p.m.

RESOLUTION - Requiring the Mayor to submit to the Governing Body a five-year Capital Improvement Plan that prioritizes expenditures on capital investments by department. Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to adopt, seconded by Mr. Shanor. Comment followed on the purpose of the resolution, which is to identify capital projects, funding, and prioritization of projects as an ongoing plan. Motion carried. Voting "yes" -- all members of the governing body. (#5545)

[CA] RESOLUTION - In Support of the Creation of a Presidential Youth Council that will serve as the voice of young people across the United States. Motion (per Consent Agenda) carried. (#5546)

RESOLUTION - Adopting the Fox Farm Corridor Plan. Boyd Wiggam, Wyoming Liberty Group, expressed his belief that there may be a potential property rights issue and suggested conditioning approval of the plan upon additional input being obtained from applicable land owners with regard to any future improvements, as noted in the plan, at the intersection of Fox Farm Rd., Morrie Ave. and Avenue C. Kevin Burke, Holly Frontier, advised if the option of a roundabout is implemented in the future at the Fox Farm and Avenue C intersection, it will not allow for certain truck traffic (long trucks with trailers) to navigate through it enroute to/from the refinery and if that traffic were re-routed to the alternate routes it would affect traffic flows and delays. Mr. Burke advised if the intersection were to be controlled, it should be through use of a lighted intersection. M. Lee Hasenauer, Laramie County Commissioner and member of the South Side Development Board, advised neighbors in the area are against any proposed roundabout, and stated the County Commissioners approved the plan with recommendations and requested City Council approve with the same recommendations. Commissioner Hasenauer also offered suggestions on other portions of the plan involving bike lanes and traffic flow. Mr. Allen moved to adopt, seconded by Mr. Shanor. Mr. Shanor moved to amend by substitute dated

11/25/13, seconded by Mr. Allen. It was advised the proposed amendment includes 3 conditions, 2 of which are identical to those adopted by the County Commissioners, and would also provide (condition #3) that the governing body reserves the right to deviate from the plan. Tom Mason, MPO Director, advised that Tom Cobb and Brad Emmons, AVI Engineering, assisted with the corridor plan; clarified the City Planning Commission recommended adoption of the plan as presented (without any amendments), and expressed his opinion that condition #3 may not be needed as wording in the Resolution's Be It Resolved clause indicates the plan, if adopted, would be a "guide" for future corridor improvements. Tom Cobb, AVI, advised the plan does not make a recommendation for the Avenue C intersection, leaving options open for further evaluation, and indicated information in the plan on truck routes, as referenced by Mr. Burke, was obtained from Holly Frontier. During comments, Mr. Brown raised a point of order that discussion pertain to the topic affiliated with the motion to amend on the floor with Mayor Kaysen concurring. Mr. Wiggam spoke in support of the first two conditions in the proposed motion to amend, and Commissioner Hasenauer commented on truck traffic in the corridor affecting small businesses. Mr. Brown raised another point of order that discussion remain germane to the motion to amend with Mayor Kaysen concurring. Mayor Kaysen reviewed the content of the 3 conditions in the proposed amendment. Discussion included the following topics: Additional time to review the topics contained in the proposed amendment and procedural review by the City Attorney; oral vs. written amendments; intent of the conditions; sidewalk safety; traffic volume; bike lanes; corridor's location within the City and County, and City and County involvement in determining corridor improvements. Upon inquiry regarding the Fox Farm corridor's location, Mr. Mason stated that of the portion included in the study approximately 70% of the existing corridor is in the County and 30% is within the City. Motion to amend failed. Voting "yes" -- Mr. Allen, Mr. Cook, Mr. Shanor and Ms. Williams. Voting "no" -- Mr. Brown, Ms. Broyles, Mr. Luna, Dr. Rinne, Mr. Valdez and Mayor Kaysen. Comment followed on concerns with the roundabout option, bike path safety and beautification of the area. Main motion failed (tie vote). Voting "yes" -- Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Shanor and Mayor Kaysen. Voting "no" -- Mr. Allen, Mr. Luna, Dr. Rinne, Mr. Valdez and Ms. Williams. Under other business later in the meeting, Dr. Rinne moved to reconsider the action taken on the main motion, seconded by Ms. Broyles. Upon inquiry, Carol Intlekofer, City Clerk, confirmed Dr. Rinne had voted on the prevailing side and was eligible to make the motion, and read the entitlement of the Resolution for the record. Buck Holmes, Laramie County Commissioner, expressed support for the motion. Following brief discussion on the purpose of reconsideration, motion to reconsider carried. Voting "yes" -- all members of the governing body with the exception of Mr. Luna and Ms. Williams voting "no." Ms. Broyles moved to adopt the resolution, seconded by Mr. Allen. Following comment that past practice of the governing body has been to postpone items that have been approved for reconsideration under other business, Dr. Rinne moved to postpone to December 9, 2013, seconded by Mr. Allen. Motion to postpone carried. Voting "yes" -- all members of the governing body with the exception of Mr. Luna voting "no". Mayor Kaysen advised the item would be back before the Public Services Committee at its December 3, 2013 meeting which begins at noon in Room 122.

RESOLUTION - Authorizing the Mayor and City Clerk of the City of Cheyenne to enter into an agreement for the purchase of real property, described as a parcel of land generally located east of Mountain Road, south of Plainview Road and west of Chapel Hill, consisting of approximately 121,669 square feet (estimated value of \$400,000.00), from Highland United Presbyterian Church for the purpose of land acquisition for a neighborhood park (Community

Facilities Fees). Frank Cole, president, United Western Corporation, spoke in opposition to acquiring the land for a park. He noted parks, open spaces and school grounds currently in the vicinity and discussed pending plans for new parks/open spaces affiliated with detention/drainage areas, and expressed concern with the cost of purchasing the property. Mr. Brown moved to adopt, seconded by Mr. Valdez. Discussion included the following topics: Unavailability to utilize school grounds at times; recreational needs of the Buffalo Ridge neighborhood and concern with park amenities as part of detention ponds, and area population density. Upon inquiry, Rick Parish, Parks and Recreation Director, provided information on resources relative to operation and maintenance costs and staffing; PlanCheyenne identifying the need for a neighborhood park in the area; opportunity to acquire the property, and plans to apply for a grant to assist with development of the park. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Luna voting "no". (Res#5547/Cont#6096)

[CA] RESOLUTION - Supporting the City of Cheyenne's application for Recreational Trails Program (RTP) funds to enhance the North Cheyenne Community Park Trail System -- referred to Finance Committee (sponsors -- Ms. Broyles, Mr. Cook, Dr. Rinne).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Shiraz Enclave, a replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of West Allison Road) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Sixth Filing, a replat of Lot 14, Block 1, Saddle Ridge, Fifth Filing, Cheyenne, Wyoming (located at the southwest corner of the intersection of Countryside Avenue and Medicine Man Trail) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Authorizing the City of Cheyenne, Wyoming, to lease, with an option to purchase, sanitation, recycling and landfill equipment -- referred to Finance Committee (sponsors -- Mr. Brown, Mr. Allen).

[CA] RESOLUTION - Supporting the City of Cheyenne's application for a Land and Water Conservation Fund Grant for a neighborhood park in Buffalo Ridge -- referred to Finance Committee (sponsors -- Mr. Cook, Dr. Rinne, Mr. Shanor).

[CA] Agreement between the City of Cheyenne, Parks & Recreation Department, and Robert Peccia & Associates for a Municipal Cemetery Expansion Master Plan. Motion (per Consent Agenda) carried. (#6097)

[CA] Agreement for services between the City of Cheyenne and the Church of St. Mary to define the responsibility for ground maintenance, operations and office administration services to be provided by City staff for the church at Olivet Cemetery. Motion (per Consent Agenda) carried. (#6098)

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security, and the City of Cheyenne, Fire and Rescue Department, for the Grant Award from the United

States Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Program Directorate, State Homeland Security Grant Program (SHGP) Fiscal Year 2013, for the Region 7 State Regional Emergency Response Team, in the amount of \$100,000.00. Motion (per Consent Agenda) carried. (#6099)

[CA] Grant Award Agreement between the State of Wyoming, Office of Homeland Security and the City of Cheyenne, Cheyenne Police Department, for the Grant Award from the United States Department of Homeland Security (DHS), Federal Emergency Management Agency (FEMA), Grant Program Directorate, State Homeland Security Grant Program (SHGP) Fiscal Year 2013, for Law Enforcement and Terrorism Prevention-Oriented Activities (LETPA), in the amount of \$34,814.94. Motion (per Consent Agenda) carried. (#6100)

[CA] Contract between Wyoming Department of Family Services, Social Services Division, Laramie County, and the City of Cheyenne, Office of Youth Alternatives Division, for in-home support and mentoring services to under-served families to strengthen the ability of parents to provide supportive care for their children -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5910 between the City of Cheyenne and WINHealth Partners for a premium rate increase to the City Employee Health Coverage Plan -- referred to Finance Committee.

[CA] Consideration of Bid #M-6-14 for a contract for the Fiscal Year 2014 Miscellaneous Concrete and Street Repairs Project between the City of Cheyenne, Engineering Department, and S&S Builders, LLC, Cheyenne, Wyoming (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$604,150.70). (#6101)

[CA] Consideration of Bid #M-9-14 for a contract for the Pioneer Park Fencing Project between the City of Cheyenne, Parks & Recreation Department, and Waterford Corporation, Fort Collins, Colorado (Parks Projects). Motion (per Consent Agenda) carried (amount not to exceed \$57,385.00). (#6102)

[CA] Consideration of Bid #R-10-14 for furnishing one new rotary mower and to trade in a 1999 Jacobsen rough mower for Parks & Recreation Department, Golf Division (Capital Equipment fund) -- referred to Finance Committee.

Appointments of Caroline Alston, Elizabeth Babbitt, Tyler Bedwell, Alex Cole, Alex Farkas, Alexis Ferrari, Juliette Givhan, Rachel Moseley, Emily Piel, Kesslee Stewart, Jason Weber, and Darnell Wheeler to the Mayor's Youth Council. Mr. Shanor moved to approve, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the February 26, 2014 Wyoming Association of Municipalities Business Meeting -- referred to Finance Committee.

Announcement was made of a Public Hearing to be held December 9, 2013, at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a transfer of ownership

for a retail liquor license application filed with the City Clerk's Office for Texas Roadhouse Holdings, LLC d/b/a/ Texas Roadhouse, 1931 Bluegrass Circle, Cheyenne, Wyoming (License currently held by Texas Roadhouse of Cheyenne, LLC d/b/a Texas Roadhouse, 1931 Bluegrass Circle, Cheyenne, Wyoming).

Announcement was made of the Appointments of Kimberley Withers to the Cheyenne/Laramie County Economic Development Joint Powers Board; Jeffie J. Wiggins-McMullen to the Fire Civil Service Commission; Richard Bryant and Katherine Palmer to the Historic Preservation Board; Lt. Rob Dafoe and Monique Meese to the Laramie County Community Juvenile Services Joint Powers Board; Mary E. Richey and Edwin G. Avery to the Mayor's Council for People with Disabilities; Scott D. Roybal to the Police Civil Service Commission; Terence Roker to the Public Transit Advisory Board; Victoria Fry and Greg Palmquist to the City Planning Commission; John D. Hall and Jody Shields to the Board of Adjustments, and Jared S. Olsen to the Housing and Community Development Advisory Council, to be confirmed December 9, 2013.

Announcement was made of the Re-appointments of Ken McCann to the Cheyenne Regional Airport Board; Mark Archer, M.J. Gertsch and Noel R. Griffith Jr. to the Contractor Licensing Board; Ray Fertig, Jr., Nicholas Pickering and Darin Westby to the Building Code Board of Appeals; Gene Palen to the Historic Preservation Board; Gregory Crisp, Howard A. Hill Sr., Mark E. McKay and JoAnne Weigand to the Mayor's Council for People with Disabilities; Sue Mecca and Rita Watson to the Personnel Commission; Marc Woods and Gene MacDonald to the City Planning Commission, and Stephen M. Ganison, April Matthie and Carol Slane to the Housing and Community Development Advisory Council, to be confirmed December 9, 2013.

Under other business, motion to reconsider Agenda Item #25 carried - refer to minutes section above (re: Resolution Adopting the Fox Farm Corridor Plan).

Appreciation was expressed to Mayor Kaysen for providing information to Council members on proposed appointees and re-appointees to various boards and committees as announced on the meeting agenda.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:13 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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